> making any law imposing, in the interests of the security of the State, friendly relations with foreign States, public order, decency or morality, restrictions on the exercise of the right conferred by the said sub-clause, and in particular, nothing in the said sub-clause shall affect the operation of any existing law in so far as it relates to, or prevent the State from making any law relating to, contempt of court, defamation or incitement to an offence.

The three novel words or sets of words, compared to the old phraseology are: friendly relations with foreign States, public order and incitement to an offence. Let us now examine them. For the moment, as I said, it is only an enabling measure giving power to Parliament. But let us go beyond that. Does it involve any radical attack on the basic conception of the Fundamental Rights? Take the first thing – foreign relations. Now if anyone thinks that this is meant to stifle criticism of foreign countries, certainly it is not my intention and I am quite sure not of my Government. Ultimately, of course, if such a matter arises, it will be the subject of legislation that Parliament will frame. We are not framing legislation here. We can only indicate that such a thing can be legislated about. Nobody wants it. At the same time, this House will realize that at this particular moment of a very delicate international situation and tension, we cannot easily take the risk when something said and done, not an odd thing said and done, but something said and done repeatedly and continuously, may lead in regard to foreign countries to the gravest consequences, may lead to our relations with that foreign country deteriorating rapidly. It is a power which every Government possesses and deals with. It is certainly a power which can be used or misused – it is true. But that question has to be examined when that particular power is granted. All that is said here is that the authority to deal with this matter should vest with Parliament and should not be taken away. Surely, no Member in this House is prepared to say, I hope, that this House should not have the authority to deal with this matter when grave international issues are involved, when something written or said continuously may endanger the peace of the world or our country. It is a very serious matter, that we cannot stop it. What steps to take and how to